Galveston County District Court

Cause No. 2024-CV-0024

Richard Smith, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Richard Smith

Date:	February 17, 2025
Location:	Offices of Marshall & Dominguez LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Kyle Sanders, Marshall & Dominguez LLP

Q: Please state your full name for the record.

A: I'd rather not put my full name in a transcript for this, but I understand it's a formality. You can use the plaintiff designation on the file.

Q: Fair enough. Can you describe how the collision happened?

A: I was driving in the right lane on a multi-lane road in League City, heading toward the interchange. Traffic was moderate. The other vehicle was in the lane to my left, and I had my signal on because I was moving over to get ready for my exit. As I started to merge, the other car drifted into my side. There was a scraping sound and my car pushed toward the shoulder.

Q: Did you see the other driver before the contact?

A: Only at the edge of my vision. I checked my mirror, saw the lane was clear, and moved over. I didn't see the other car until it was already contacting my door.

Q: Did you feel anything in your body at the time?

A: Not right away. My head snapped to the side and then back, the way it does when the car jolts. By that evening my neck was stiff and there was a dull ache in my lower back.

Q: Did you seek medical care?

A: Yes. I went to an urgent care clinic the next day and then was referred to a physical therapist. I've been going to therapy two or three times a week, and my primary care doctor has been checking on me as well.

Q: What treatment have you received?

A: Mostly stretching, heat packs, and manual therapy on my neck and back. The therapist gave me a home exercise program that I do most mornings. My doctor prescribed a muscle relaxer for a few weeks, which I took at night.

Q: How has this affected your daily life?

A: It's been hard to sit at my desk for long stretches. I used to coach my son's youth soccer team on weekends, and I had to hand that over to my wife for most of the season. Lifting groceries and carrying laundry basket upstairs is uncomfortable. Sleep has been broken because I can't find a comfortable position.

Q: Are you still experiencing symptoms today?

A: Yes, though they're better than they were. Some mornings my neck is still tight, and if I sit in the car too long my lower back flares up. My therapist says I'm making progress, and I'm hopeful I'll be back to normal with continued care.